



CHAPTER 7.

An Act to make provision for, and in connection with, the attainment by Ceylon of fully responsible status within the British Commonwealth of Nations.

[10th December 1947.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) No Act of the Parliament of the United Kingdom passed on or after the appointed day shall extend, or be deemed to extend, to Ceylon as part of the law of Ceylon, unless it is expressly declared in that Act that Ceylon has requested, and consented to, the enactment thereof. Provision for the fully responsible status of Ceylon.

(2) As from the appointed day His Majesty's Government in the United Kingdom shall have no responsibility for the government of Ceylon.

(3) As from the appointed day the provisions of the First Schedule to this Act shall have effect with respect to the legislative powers of Ceylon.

2. As from the appointed day Ceylon shall be included in the definition of " Dominion " in paragraph (23) of section one hundred and ninety of the Army Act and of the Air Force Act (which section, in each Act, relates generally to the interpretation of the Act), and accordingly in the said paragraph (23), in each Act, for the words " and Newfoundland " there shall be substituted the words " Newfoundland and Ceylon ". Amendment of Army and Air Force Acts.

Divorce
jurisdiction.

3.—(1) No court in Ceylon shall, by virtue of the Indian and Colonial Divorce Jurisdiction Acts, 1926 and 1940, have jurisdiction in or in relation to any proceedings for a decree for the dissolution of a marriage, unless those proceedings were instituted before the appointed day, but, save as aforesaid and subject to any provision to the contrary which may hereafter be made by any Act of the Parliament of the United Kingdom or of Ceylon, all courts in Ceylon shall have the same jurisdiction under the said Acts as they would have had if this Act had not been passed.

16 & 17 Geo. 5.
c. 40.

(2) Any rules made on or after the appointed day under subsection (4) of section one of the Indian and Colonial Divorce Jurisdiction Act, 1926, for a court in Ceylon shall, instead of being made by the Secretary of State with the concurrence of the Lord Chancellor, be made by such authority as may be determined by the law of Ceylon, and so much of the said subsection and of any rules in force thereunder immediately before the appointed day as requires the approval of the Lord Chancellor to the nomination for any purpose of any judges of any such court shall cease to have effect.

1 Edw. 8. &
1 Geo. 6.

c. 57.
Consequential
amendments
not affecting
the law of
Ceylon.

(3) The references in subsection (1) of this section to proceedings for a decree for the dissolution of a marriage include references to proceedings for such a decree of presumption of death and dissolution of a marriage as is authorised by section eight of the Matrimonial Causes Act, 1937.

4.—(1) As from the appointed day, the Acts and Regulations referred to in the Second Schedule to this Act shall have effect subject to the amendments made by that Schedule, and His Majesty may by Order in Council make such further adaptations in any Act of the Parliament of the United Kingdom of an earlier session than this Act, or in any instrument having effect under any such Act, as appear to him necessary in consequence of section one of this Act :

Provided that this subsection shall not extend to Ceylon as part of the law thereof.

52 & 53 Vict.
c. 63.

(2) Notwithstanding anything in the Interpretation Act, 1889, the expression " colony " shall not include Ceylon in any Act of the Parliament of the United Kingdom passed on or after the appointed day or in any such Act passed before that day, but in the same session as this Act, to provide for the independence of Burma as a country not within His Majesty's dominions.

(3) Any Order in Council made under this section may be varied or revoked by a subsequent Order in Council and, though made after the appointed day, may be made so as to have effect from that day.

(4) Every Order in Council made under this section shall be laid before Parliament forthwith after it is made, and if either House of Parliament within the period of forty days beginning with the day on which any such Order is laid before it resolves that an Address be presented to His Majesty praying that the Order be annulled, no further proceedings shall be taken thereunder and His Majesty in Council may revoke the Order, so, however, that any such resolution or revocation shall be without prejudice to the validity of anything previously done under the Order or to the making of a new Order.

In reckoning any such period of forty days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

(5) Notwithstanding anything in subsection (4) of section one of the Rules Publication Act, 1893, an Order in Council made 56 & 57 Vict. under this section shall not be deemed to be or to contain a c. 66. statutory rule to which that section applies.

5.—(1) This Act may be cited as the Ceylon Independence Act, 1947. Short title and
commence-
ment.

(2) In this Act the expression "the appointed day" means such day as His Majesty may by Order in Council appoint.

SCHEDULES.

Section 1.

FIRST SCHEDULE.

LEGISLATIVE POWERS OF CEYLON.

28 & 29 Vict.
c. 63.

1.—(1) The Colonial Laws Validity Act, 1865, shall not apply to any law made after the appointed day by the Parliament of Ceylon.

(2) No law and no provision of any law made after the appointed day by the Parliament of Ceylon shall be void or inoperative on the ground that it is repugnant to the law of England, or to the provisions of any existing or future Act of Parliament of the United Kingdom, or to any order, rule or regulation made under any such Act, and the powers of the Parliament of Ceylon shall include the power to repeal or amend any such Act, order, rule or regulation in so far as the same is part of the law of Ceylon.

2. The Parliament of Ceylon shall have full power to make laws having extra-territorial operation.

57 & 58 Vict
c. 60.

3. Without prejudice to the generality of the foregoing provisions of this Schedule, sections seven hundred and thirty-five and seven hundred and thirty-six of the Merchant Shipping Act, 1894, shall be construed as though reference therein to the legislature of a British possession did not include reference to the Parliament of Ceylon.

53 & 54 Vict.
c. 27.

4. Without prejudice to the generality of the foregoing provisions of this Schedule, section four of the Colonial Courts of Admiralty Act, 1890 (which requires certain laws to be reserved for the signification of His Majesty's pleasure or to contain a suspending clause), and so much of section seven of that Act as requires the approval of His Majesty in Council to any rules of Court for regulating the practice and procedure of a Colonial Court of Admiralty, shall cease to have effect in Ceylon.

Section 4.

SECOND SCHEDULE.

AMENDMENTS NOT AFFECTING LAW OF CEYLON.

British nationality.

1. The following enactments (which provide for certificates of naturalisation granted and other things done under the law of one part of His Majesty's dominions to be recognised elsewhere), namely—

4 & 5 Geo. 5.
c. 17.

(a) section eight of the British Nationality and Status of Aliens Act, 1914; and

6 & 7 Geo. 6.
c. 14.

(b) paragraph (c) of section eight of the British Nationality and Status of Aliens Act, 1943;

shall apply in relation to Ceylon as they apply in relation to the Dominions specified in the First Schedule to the said Act of 1914.

Financial.

2ND SCH.
—cont.

2. As respects goods imported after such date as His Majesty may by Order in Council appoint section four of the Import Duties Act, 1932, and section two of the Isle of Man (Customs) Act, 1932 (which relate to imperial preference other than colonial preference), shall apply to Ceylon. 22 & 23 Geo. 5.
c. 8.
22 & 23 Geo. 5.
c. 16.

3. In section nineteen of the Finance Act, 1923 (which, as extended by section twenty-six of the Finance Act, 1925, provides for exemption from income tax and land tax of the High Commissioner and other officials of self-governing dominions), the expression "self-governing dominion" shall include Ceylon. 13 & 14 Geo. 5.
c. 14.
15 & 16 Geo. 5.
c. 36.

4. In the Colonial Stock Act, 1934 (which extends the stocks which may be treated as trustee securities), the expression "Dominion" shall include Ceylon. 24 & 25 Geo. 5.
c. 47.

Visiting forces.

5. The following provisions of the Visiting Forces (British Commonwealth) Act, 1933, namely— 23 & 24 Geo. 5.
c. 6.

(a) section three (which deals with deserters) ;

(b) section four (which deals with attachment and mutual powers of command) ;

(c) the definition of "visiting force" for the purposes of that Act generally which is contained in section eight thereof ;

shall apply in relation to forces raised in Ceylon as they apply in relation to forces raised in the Dominions within the meaning of the Statute of Westminster, 1931. 22 & 23 Geo. 5.
c. 4.

Ships and aircraft.

6.—(1) In the definition of "Dominion ship or aircraft" contained in subsection (2) of section three of the Emergency Powers (Defence) Act, 1939, and in that contained in Regulation one hundred of the Defence (General) Regulations, 1939, the expression "a Dominion" shall include Ceylon. 2 & 3 Geo. 6
c. 62.

(2) Paragraph (2) of Regulation fifty-four of the Defence (General) Regulations, 1939 (which confers power by notice to requisition from certain British subjects and companies space or accommodation in ships and aircraft), shall not authorise service of a notice on a British subject resident in Ceylon or a corporation incorporated under the law of Ceylon.

7. The Ships and Aircraft (Transfer Restriction) Act, 1939, shall not apply to any ship by reason only of its being registered in, or licensed under the law of, Ceylon ; and the penal provisions of that Act shall not apply to persons in Ceylon (but without prejudice to the operation with respect to any ship to which that Act does apply of the provisions thereof relating to the forfeiture of ships). 2 & 3 Geo. 6.
c. 70.

8. In the Whaling Industry (Regulation) Act, 1934, the expression "British ship to which this Act applies" shall not include a British ship registered in Ceylon. 24 & 25 Geo. 5.
c. 49.

2ND SCH.
—cont.7 & 8 Geo. 6.
c. 43.*Matrimonial causes.*

9. Section four of the Matrimonial Causes (War Marriages) Act, 1944 (which provides for the general recognition in British courts of decrees and orders made by virtue of that Act or of any law passed in a part of His Majesty's dominions outside the United Kingdom and declared by an Order in Council to correspond to that Act), shall, in relation to the making of any further Order in Council as respects a law of Ceylon, apply subject to the same provision for securing reciprocity as is made by proviso (ii) to subsection (1) thereof in the case of Dominions within the meaning of the Statute of Westminster, 1931.

*Copyright.*1 & 2 Geo. 5.
c. 46.

10. If the Parliament of Ceylon repeals or amends the Copyright Act, 1911, as it forms part of the law of Ceylon, then—

- (a) except by virtue of sub-paragraph (b) of this paragraph, that Act shall no longer apply in relation to Ceylon as a part of His Majesty's dominions to which the Act extends, so, however, that this provision shall not prejudicially affect any legal rights existing at the time of the repeal or amendment ;
- (b) Ceylon shall be included in the expression "self-governing dominion" for the purposes of subsection (2) of section twenty-five and subsection (3) of section twenty-six of that Act (which relate to reciprocity with self-governing dominions having their own copyright law), and the said subsection (2) shall have effect in relation to Ceylon as if that Act, so far as it remains part of the law of Ceylon, had been passed by the Parliament thereof.

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